



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

MAR 20 1998

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10138
(SECOND REVISION)

EXPIRATION DATE: February 29, 2000

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. **GRANTEE:** BetzDearborn, Inc. (formerly Betz Laboratories, Inc.)
Trevose, PA
2. **PURPOSE AND LIMITATION:** This exemption authorizes the transportation in commerce of closed transport vehicles, loaded with three or more portable tanks containing different compatible hazard classes of materials or residues thereof. This exemption also authorizes the display of placards showing only the generic n.o.s. identification number and provides no relief from any regulation other than as specifically stated herein.
3. **REGULATORY SYSTEM AFFECTED:** 49 CFR Parts 106, 107 and 171-180.
4. **REGULATIONS FROM WHICH EXEMPTED:** 49 CFR 172.326(c); 172.334(b).
5. **BASIS:** This exemption is based on the application of Betz Laboratories dated February 27, 1998, submitted in accordance with 49 CFR 107.109.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Corrosive liquids (for which a UN 1H1 reusable drum is authorized in 49 CFR Part 173), and which have no secondary hazards and a vapor pressure of no greater than 14.7 psia at 130°F	8	as appropriate	as appropriate
Compounds, cleaning liquid (containing not more than 52% hydrofluoric acid)	8	NA1760	I, II or III
Nitric acid solutions (containing 10% or less nitric acid by weight)	8	UN2031	I or II
Hydrogen peroxide solution in water (containing 52% or less hydrogen peroxide by weight)	5.1	UN2014	II
Methanol, Ethanol, Isopropanol; and Flammable liquids compatible with polyethylene which have no secondary hazards and have a flash point of 73°F or higher*	3	as appropriate	I, II, or III
Combustible liquids, n.o.s.	combustible liquid	NA1993	III

*And other flammable liquids which have been specifically authorized for shipment under the terms of DOT-E 9116 and 9374.

Note: The technical name of the material must be entered in parentheses in association with the basic generic description, in accordance with 49 CFR 172.203(k).

7. SAFETY CONTROL MEASURES. Packagings prescribed are non-DOT specification, rotationally molded, polyethylene portable tanks manufactured in conformance with the requirements for tanks authorized under DOT-E 9116 and DOT-E 9374.

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8. SPECIAL PROVISIONS.

- a. For hazardous materials identified in paragraph 3, a placard, with a generic (n.o.s.) identification number, representing each hazard class being shipped, may be displayed on both sides and both ends of closed transport vehicles transporting the portable tanks containing the materials, or residue thereof, authorized to be shipped in the portable tanks manufactured and used under the terms of DOT-E 9116 or DOT-E 9374.
- b. No other hazardous cargo may be loaded on the vehicle used to transport the packages authorized by this exemption.
- c. The requirements of 49 CFR 172.203(a) are waived.
- d. Shipping papers must conform to Subpart C of Part 172 of 49 CFR.
- e. Materials shipped under the terms of this exemption must be of the same hazard class except materials of different hazard classes may be shipped when they are compatible and in accordance with the loading chart at 49 CFR 177.848; in such cases, the appropriate generic placard and number must be displayed for each hazard class.
- f. Shipments must be made by private or contract carriers.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

for Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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